

PASSED

CHICKASAW TRIBAL LEGISLATURE
Permanent Resolution Number 38-012
Amendments to Title 5 of the Chickasaw Nation Code
(Courts and Procedures)

WHEREAS, in accordance with Article VII, Sections 4 and 7 of the Constitution of the Chickasaw Nation, the Chickasaw Tribal Legislature shall enact rules and regulations pertaining to the Chickasaw Nation, and shall make decisions pertaining to the acquisition, leasing, disposition and management of real property, subject to federal law, and

WHEREAS, in accordance with Article XI, Section 1 of the Constitution of the Chickasaw Nation, the Governor shall perform all duties appertaining to the office of Chief Executive. He shall sign official papers on behalf of the Nation, and

WHEREAS, the Chickasaw Tribal Legislature has previously enacted rules and regulations for Courts and Procedures, and

WHEREAS, the Tribal Legislature desires to amend those rules and regulations.

NOW, THEREFORE, BE IT RESOLVED, that the Chickasaw Tribal Legislature hereby authorizes and approves the following amendments to Title 5, Chapter 15, of the Chickasaw Nation Code, all other sections and parts of sections to remain the same (additions are shown in red, deletions are stricken through, and omission without deletion of substance is signified by “***”):

SECTION 5-1502.1

ARSON IN THE FIRST DEGREE.

* * *

B. Arson in the First Degree shall be punishable by a fine of ~~not less than two hundred fifty Dollars (\$250) nor more than five thousand dollars (\$5,000)~~ by imprisonment for a term of ~~not less than six (6) months nor more than one (1) year, or any combination of them~~ **not to exceed fifteen thousand dollars (\$15,000), by a term of imprisonment not less than one (1) year, but not to exceed three (3) years, or by both such fine and imprisonment.**

SECTION 5-1502.5

BURGLARY.

* * *

B. Burglary in the First Degree shall be punishable by a fine of ~~not less than two hundred fifty dollars (\$250) nor more than five thousand dollars (\$5,000)~~, by imprisonment for ~~not less than three (3) months nor more than one (1) year, or by any combination of them~~ **not to exceed fifteen thousand dollars (\$15,000), by a term of imprisonment not less than one (1) year, but not to exceed three (3) years, or by both such fine and imprisonment.**

C. Burglary in the Second Degree shall be punishable by a fine of ~~not less than two hundred fifty dollars (\$250) nor more than five thousand dollars (\$5,000), by imprisonment for not less than three (3) months nor more than one (1) year, or by any combination of them~~ **not to exceed fifteen thousand dollars (\$15,000), by a term of imprisonment not to exceed three (3) years, or by both such fine and imprisonment.**

SECTION 5-1502.8**LARCENY.**

* * *

B. Larceny shall be punishable by a fine not exceeding five thousand dollars (\$5,000), by **a term of imprisonment for a term not exceeding six (6) months, or both to exceed one (1) year, or by both such fine and imprisonment.**

C. Grand Larceny shall be punishable by a fine not ~~exceeding five thousand dollars (\$5,000), by imprisonment for a term not exceeding six (6) months, or both~~ **to exceed fifteen thousand dollars (\$15,000), by a term of imprisonment not to exceed three (3) years, or by both such fine and imprisonment.**

SECTION 5-1502.9**EXTORTION.**

* * *

B. Extortion shall be punishable by a fine not ~~exceeding five thousand dollars (\$5,000) by imprisonment for a term not exceeding one (1) year, or both~~ **to exceed fifteen thousand dollars (\$15,000), by a term of imprisonment not to exceed three (3) years, or by both such fine and imprisonment.**

SECTION 5-1502.15**UNAUTHORIZED USE OF A VEHICLE.**

* * *

B. Unauthorized Use of a Vehicle shall be punishable by a fine not ~~exceeding five thousand dollars (\$5,000), by imprisonment for a term not exceeding one (1) year, or both~~ **to exceed fifteen thousand dollars (\$15,000), by a term of imprisonment not to exceed three (3) years, or by both such fine and imprisonment.**

SECTION 5-1502.19**TAMPERING WITH RECORDS.**

* * *

B. Tampering with Records shall be punishable with a fine not ~~exceeding five thousand dollars (\$5,000), or by imprisonment for a term not exceeding one (1) year, or by both a fine and imprisonment, or any combination of the above punishments~~ **to exceed fifteen**

thousand dollars (\$15,000), by a term of imprisonment not to exceed three (3) years, or by both such fine and imprisonment.

SECTION 5-1503.1**ASSAULT IN THE FIRST DEGREE.**

* * *

B. Assault in the First Degree shall be punishable by a fine not to exceed five thousand dollars (\$5,000) ~~thousand dollars (\$5,000)~~ fifteen thousand dollars (\$15,000), by a term of imprisonment not to exceed one (1) year, or any combination of them ~~three (3) years, or by both such fine and imprisonment.~~

SECTION 5-1503.3**MAIMING.**

* * *

B. Maiming shall be punishable by a fine not to exceed five thousand dollars (\$5,000) ~~thousand dollars (\$5,000)~~ fifteen thousand dollars (\$15,000), by a term of imprisonment not to exceed one (1) year, or any combination of them ~~three (3) years, or by both such fine and imprisonment.~~

SECTION 5-1503.5**HOMICIDE IN THE FIRST DEGREE.**

* * *

B. Homicide in the First Degree shall be punishable by a fine of five thousand dollars (\$5,000) ~~not to exceed fifteen thousand dollars (\$15,000)~~, by a term of imprisonment not to exceed ~~less than one (1) year; or any combination of them,~~ but not to exceed three (3) years, or by both such fine and imprisonment.

SECTION 5-1503.6**HOMICIDE IN THE SECOND DEGREE.**

* * *

B. Homicide in the Second Degree shall be punishable by a fine of five thousand dollars (\$5,000) ~~not to exceed fifteen thousand dollars (\$15,000)~~, by a term of imprisonment not to exceed one (1) year; or any combination of them ~~three (3) years, or by both such fine and imprisonment.~~

SECTION 5-1503.7**CAUSING A SUICIDE.**

* * *

B. Causing a Suicide shall be punishable by a fine not to exceed ~~five thousand dollars (\$5,000)~~ **fifteen thousand dollars (\$15,000)**, by a term of imprisonment not to exceed ~~one (1) year, or any combination of them~~ **three (3) years, or by both such fine and imprisonment.**

SECTION 5-1503.8**AIDING OR SOLICITING A SUICIDE.**

* * *

B. Aiding or Soliciting a Suicide shall be punishable by a fine not to exceed ~~five thousand dollars (\$5,000)~~ **fifteen thousand dollars (\$15,000)**, by a term of imprisonment not to exceed ~~one (1) year, or both~~ **three (3) years, or by both such fine and imprisonment.**

SECTION 5-1503.9**KIDNAPPING.**

* * *

C. Kidnapping shall be punishable by a fine not to exceed ~~five thousand dollars (\$5,000)~~ **fifteen thousand dollars (\$15,000)**, by a term of imprisonment not to exceed ~~one less than (1) year, or any combination of them~~ **but not to exceed three (3) years, or by both such fine and imprisonment three (3) years, or by both such fine and imprisonment.**

SECTION 5-1503.13**RAPE IN THE FIRST DEGREE.**

* * *

C. Rape in the First Degree shall be punishable by a fine not to exceed ~~five thousand dollars (\$5,000)~~ **fifteen thousand dollars (\$15,000)**, by a term of imprisonment not to exceed ~~less than one (1) year, or any combination of them~~ **but not to exceed three (3) years, or by both such fine and imprisonment.**

SECTION 5-1503.14**RAPE IN THE SECOND DEGREE.**

* * *

C. Rape in the Second Degree shall be punishable by a fine not to exceed ~~five thousand dollars (\$5,000)~~ **fifteen thousand dollars (\$15,000)**, by a term of imprisonment not to exceed ~~one (1) year, or any combination of them~~ **three (3) years, or by both such fine and imprisonment.**

SECTION 5-1503.15**BESTIALITY.**

* * *

B. Bestiality shall be punishable by a fine not to exceed ~~five thousand dollars (\$5,000)~~ **fifteen thousand dollars (\$15,000)**, by a term of imprisonment not to exceed ~~one (1) year, or both~~ **three (3) years, or by both such fine and imprisonment.**

SECTION 5-1503.16**LEWD OR INDECENT PROPOSALS OR ACTS AS TO CHILDREN UNDER 16; SEXUAL BATTERY.**

* * *

C. Any person convicted of any violation of this Section shall be punished by a fine not to exceed ~~five thousand dollars (\$5,000)~~ **fifteen thousand dollars (\$15,000)**, and ~~imprisonment for not more than one (1) year~~ **by a term of imprisonment not to exceed three (3) years, or by both such fine and imprisonment.** Any person convicted of a second violation of this Section shall not be eligible for probation, suspended or deferred sentence.

SECTION 5-1503.19**ROBBERY.**

* * *

B. Robbery shall be punishable by a fine not to exceed ~~five thousand dollars (\$5,000)~~ **fifteen thousand dollars (\$15,000)**, by a term of imprisonment not to exceed ~~less than one (1) year, or both~~ **but not to exceed three (3) years, or by both such fine and imprisonment.**

SECTION 5-1505.7**MISUSING PUBLIC MONEY.**

* * *

C. Misusing Public Money shall be punishable by a fine not to exceed ~~five thousand dollars (\$5,000)~~ **fifteen thousand dollars (\$15,000)**, by a term of imprisonment not to exceed ~~one (1) year, or any combination of them~~ **three (3) years, or by both such fine and imprisonment.**

SECTION 5-1505.8**PERJURY IN THE FIRST DEGREE.**

* * *

F. Perjury in the First Degree shall be punishable by a fine not to exceed ~~five thousand dollars (\$5,000)~~ **fifteen thousand dollars (\$15,000)**, by a term of imprisonment not to exceed ~~one (1) year, or any combination of them~~ **three (3) years, or by both such fine and imprisonment.**

SECTION 5-1505.10**TAMPERING WITH WITNESS.**

* * *

B. Tampering with Witnesses shall be punishable by a fine not to exceed ~~five thousand dollars (\$5,000)~~ **fifteen thousand dollars (\$15,000)**, by a term of imprisonment not to exceed ~~one (1) year, or both~~ **three (3) years, or by both such fine and imprisonment.**

SECTION 5-1505.11**TAMPERING WITH EVIDENCE.**

* * *

B. Tampering with Evidence shall be punishable by a fine not to exceed ~~five thousand dollars (\$5,000)~~ **fifteen thousand dollars (\$15,000)**, by a term of imprisonment not to exceed ~~one (1) year, or any combination of them~~ **three (3) years, or by both such fine and imprisonment.**

SECTION 5-1505.29**COMPENSATION FOR PAST OFFICIAL BEHAVIOR.**

* * *

B. Compensation for Past Official Behavior shall be punishable by a fine not to exceed ~~five thousand dollars (\$5,000)~~ **fifteen thousand dollars (\$15,000)**, by a term of imprisonment not to exceed ~~one (1) year, or any combination of them~~ **three (3) years, or by both such fine and imprisonment.**

SECTION 5-1505.32**TREASON.**

* * *

B. Treason shall be punishable by a fine of ~~five thousand dollars (\$5,000)~~ **not to exceed fifteen thousand dollars (\$15,000)**, by a term of ~~and~~ imprisonment ~~for not less than one (1) year, or any combination of them~~ **but not to exceed three (3) years, or by both such fine and imprisonment.**

SECTION 5-1506.1**RIOTING.**

* * *

B. Rioting shall be punishable by a fine not to exceed ~~Five Thousand Dollars (\$5,000.00)~~ **fifteen thousand dollars (\$15,000)**, by a term of imprisonment not to exceed ~~one (1) year, or both~~ **three (3) years, or by both such fine and imprisonment.**

SECTION 5-1506.12**ABUSING A CORPSE.**

* * *

B. Abusing a Corpse shall be punishable by a fine not to exceed ~~five thousand dollars (\$5,000)~~ **fifteen thousand dollars (\$15,000)**, by a term of imprisonment not to exceed ~~one (1) year~~, or any combination of them **three (3) years**, or by both such fine and imprisonment.

SECTION 5-1506.15**KNOWINGLY ENGAGING IN CONDUCT REASONABLY
LIKELY TO TRANSFER HIV.**

* * *

C. Knowingly Engaging in Conduct Reasonably Likely to Transfer HIV shall be punishable by a fine of ~~five thousand dollars (\$5,000)~~ and imprisonment for not more than ~~one (1) year~~ **not to exceed fifteen thousand dollars (\$15,000)**, by a term of imprisonment **not to exceed three (3) years**, or by both such fine and imprisonment.

SECTION 5-1506.21**POSSESSION OF CONTROLLED DANGEROUS
SUBSTANCES.**

* * *

C. Possession of Controlled Dangerous Substances shall be punishable by a fine not to exceed ~~five thousand dollars (\$5,000)~~ **fifteen thousand dollars (\$15,000)**, by a term of imprisonment not to exceed ~~one year~~, or both **three (3) years**, or by both such fine and imprisonment.

* * *

E. In all cases of fines and/or seizure, the total amount assessed, whether through fine or seizure or a combination of both, shall not exceed ~~five thousand dollars (\$5,000)~~ **fifteen thousand dollars (\$15,000)**. The value of personal property seized to satisfy the amount of the penalty shall be ~~determine~~ **determined** by a court-ordered auction of such seized property and any monies received that exceed the amount of the penalty shall be given to the person whose personal property was seized, or upon a motion sustained by the Court, held by the Court for the payment of the defendant's attorney or for the costs of special services provided for the defendant.

SECTION 5-1506.22**CRUELTY TO ANIMALS.**

* * *

B. Cruelty to Animals shall be punishable by a fine not to exceed ~~five thousand dollars (\$5,000)~~ **fifteen thousand dollars (\$15,000)**, by a term of imprisonment not to exceed ~~one (1) year~~, or both **three (3) years**, or by both such fine and imprisonment. It is a defense to

prosecution under this Section that the conduct of the actor toward the animal was an accepted veterinary practice or directly related to a bonafide experimentation for scientific research, provided that if the animal is to be destroyed, the manner employed will not be unnecessarily cruel unless directly necessary to the veterinary purpose or scientific research involved.

SECTION 5-1506.30**TRAFFICKING IN CHILDREN.**

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C. This Section does not apply to attorneys or advocates licensed by the Chickasaw Nation courts receiving reasonable fees for legal services actually rendered in the course of lawful adoption proceedings, nor shall subparagraphs A.1 or A.2 above apply to any bonafide social worker or government employee receiving their normal salary and making such placements as a part of their official duties.

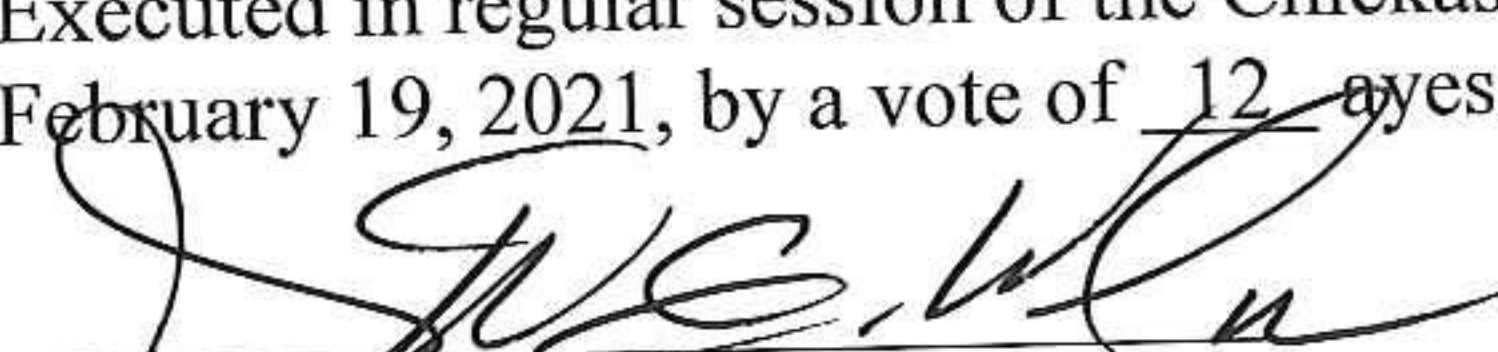
D. Trafficking in Children shall be punishable by a fine not to exceed ~~five thousand dollars (\$5,000)~~ **fifteen thousand dollars (\$15,000)**, by a term of imprisonment not to exceed ~~one (1) year, or both~~ **three (3) years, or by both such fine and imprisonment.**

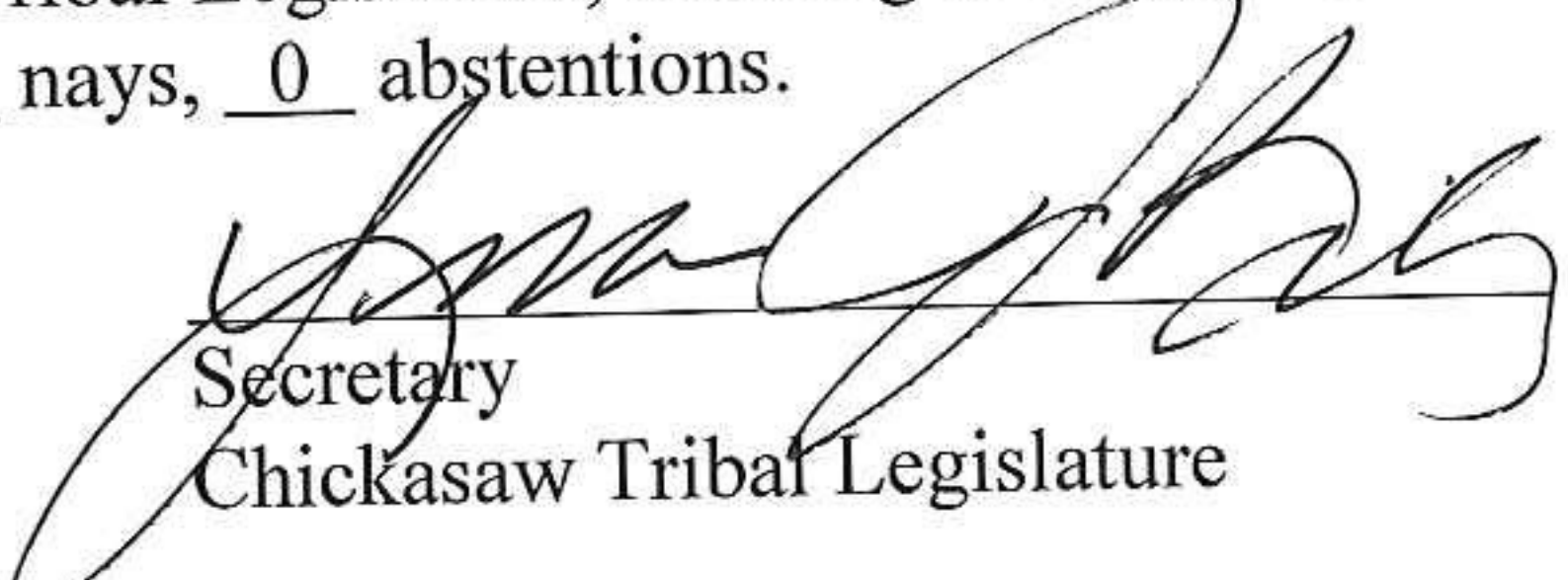
SECTION 5-1506.33**ACCESSORY TO ANIMAL ATTACKS.**

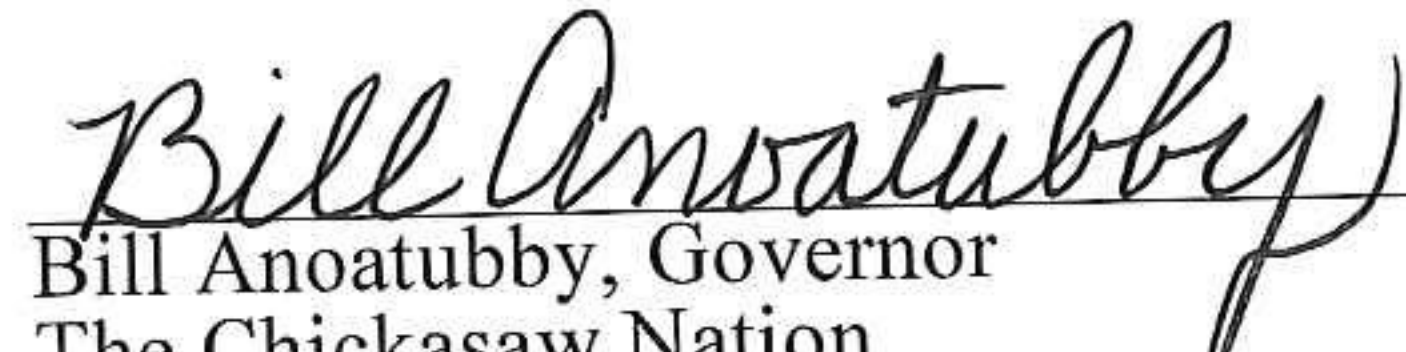
* * *

B. Accessory to Animal Attacks shall be punishable by a fine ~~of up to five thousand dollars (\$5,000)~~ **not to exceed fifteen thousand dollars (\$15,000)**, or by ~~a term of imprisonment of up to one (1) year~~ **not to exceed three (3) years, or by both such fine and imprisonment.** The animal(s) determined to be involved in the attack(s) shall be confiscated to be tested for diseases that, if existing, would require other medical treatments. Once the health of the animal(s) is/are determined, such animal(s) shall, by order of the Court, be either destroyed or otherwise disposed of as the interest of the victim and the Court shall best be served. The guilty party shall also be responsible for all costs relating to the court action and all legal and medical fees of the victim(s). Conviction under this Section shall not ~~pre-empt~~ **preempt** any civil cause of action brought by a victim(s) against the accused

Executed in regular session of the Chickasaw Tribal Legislature, Meeting at Ada, Oklahoma, on February 19, 2021, by a vote of 12 ayes, 0 nays, 0 abstentions.


Chairperson
Chickasaw Tribal Legislature


Secretary
Chickasaw Tribal Legislature

Concur: 
Bill Anoatubby, Governor
The Chickasaw Nation

Date: _____

FEB 22 2021

CHICKASAW TRIBAL LEGISLATURE
Permanent Resolution Number 38-012
Amendments to Title 5 of the Chickasaw Nation Code
(Courts and Procedures)

Explanation:

This resolution amends Title 5 to enact enhanced sentencing for select offenses allowed under Chickasaw Nation Code Section 5-301.10.

Presented by:

Legislative Committee,
Chickasaw Tribal Legislature